

Data Transfer and Use Agreement (“Agreement”)

Provider: Choose an item.	Recipient: Click or tap here to enter text.
Provider Physician Name: Click or tap here to enter text. Email: Click or tap here to enter text.	Recipient Physician/Scientist Name: Click or tap here to enter text. Email: Click or tap here to enter text.
Agreement Term Start Date: Date of last signature below End Date: Click or tap here to enter text.	Project Title: Click or tap here to enter text. Attachment 2 Type: De-Identified Data about Human Subjects

This Data Transfer and Use Agreement (hereinafter “Agreement”), effective as of the date of the last signature below (hereinafter “Effective Date”), is by and between Choose an item., a New York not-for profit corporation located at Choose an item. (hereinafter “Provider”) and Click or tap here to enter text. located at Click or tap here to enter text. (hereinafter “Recipient”). Provider and Recipient shall be referred to hereinafter individually as a “Party” and collectively as the “Parties.”

Terms and Conditions

1. Provider shall provide the Data set described in Attachment 1 (the “Data”) to Recipient for the research purpose set forth in Attachment 1 (the “Project”). Provider shall retain ownership of any rights it may have in the Data and Recipient does not obtain any rights in the Data other than as set forth herein.
2. If applicable, reimbursement of any costs associated with the preparation, compilation, and transfer of the Data to the Recipient will be addressed in Attachment 1.
3. Recipient shall not use the Data except as authorized under this Agreement. The Data will be used solely to conduct the Project and solely by Recipient Scientist and Recipient’s faculty, employees, fellows, students, and agents (“Recipient Personnel”) and Third-Party Personnel (as defined in Attachment 3) that have a need to use, or provide a service in respect of, the Data in connection with the Project and whose obligations of use are consistent with the terms of this Agreement (collectively, “Authorized Persons”).
4. Except as authorized under this Agreement or otherwise required by law, Recipient agrees to retain control over the Data and shall not disclose, release, sell, rent, lease, loan, or otherwise grant access to the Data to any third party, except Authorized Persons, without the prior written consent of Provider. Recipient agrees to establish appropriate administrative, technical, and physical safeguards to prevent unauthorized use of or access to the Data and comply with any other special requirements relating to safeguarding of the Data as may be set forth in Attachment 2.
5. Recipient agrees to use the Data in compliance with all applicable laws, rules, and regulations, as well as all professional standards applicable to such research.
6. Recipient is encouraged to make publicly available the results of the Project. Before Recipient submits a paper or abstract for publication or otherwise intends to publicly disclose information about the results of the Project, the

Recipient will submit the proposed publication, or a written version of such other disclosure, to Provider for review and comment. The Provider will have forty-five (45) days from receipt to review proposed manuscripts and fifteen (15) days from receipt to review proposed abstracts to ensure that the Data is appropriately protected. Provider may request in writing that the proposed publication or other disclosure be delayed for up to forty-five (45) additional days as necessary to protect proprietary information.

7. Recipient agrees to recognize the contribution of the Provider as the source of the Data in all written, visual or oral public disclosures concerning Recipient's research using the Data, as appropriate in accordance with scholarly standards and any specific format that has been indicated in Attachment 1.
8. Unless terminated earlier in accordance with this Section 8 or extended via a modification in accordance with Section 13, this Agreement shall expire as of the End Date set forth above. Either Party may terminate this Agreement with thirty (30) days prior written notice to the other Party's Authorized Official as set forth below. Upon expiration or early termination of this Agreement, Recipient shall follow the disposition instructions provided in Attachment 2.
9. Except as provided below or prohibited by law, any Data delivered pursuant to this Agreement is understood to be provided "AS IS." PROVIDER MAKES NO REPRESENTATIONS AND EXTENDS NO WARRANTIES OF ANY KIND, EITHER EXPRESSED OR IMPLIED. THERE ARE NO EXPRESS OR IMPLIED WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE, OR THAT THE USE OF THE DATA WILL NOT INFRINGE ANY PATENT, COPYRIGHT, TRADEMARK, OR OTHER PROPRIETARY RIGHTS. Notwithstanding, Provider warrants that it has the right and authority to provide the Data to Recipient for use in the Project.
10. Except to the extent prohibited by law, the Recipient assumes all liability for damages which may arise from its use, storage, disclosure, or disposal of the Data. The Provider will not be liable to the Recipient for any loss, claim, or demand made by the Recipient, or made against the Recipient by any other party, due to or arising from the use of the Data by the Recipient, except to the extent permitted by law when caused by the gross negligence or willful misconduct of the Provider.
11. Neither Party shall use the other Party's name, trademarks, or other logos in any publicity, advertising, or news release without the prior written approval of an authorized representative of that Party. The Parties agree that each Party may disclose factual information regarding the existence and purpose of the relationship that is the subject of this Agreement for other purposes without written permission from the other Party provided that any such statement shall accurately and appropriately describe the relationship of the Parties and shall not in any manner imply endorsement by the other Party whose name is being used.
12. Unless otherwise specified, this Agreement and the below listed Attachments embody the entire understanding between Provider and Recipient regarding the transfer of the Data to Recipient for the Project:
 - Attachment 1: Project Specific Information
 - Attachment 2: Data-specific Terms and Conditions
 - Attachment 3: Identification of Permitted Collaborators (if any)
13. No modification or waiver of this Agreement shall be valid unless in writing and executed by duly- authorized representatives of both Parties.
14. All notices pertaining to this Agreement shall be in writing, shall be deemed to have been duly given and deemed

effective when received if hand delivered, mailed by certified or registered mail, return receipt requested and postage prepaid or overnight courier delivery service, with delivery tracking and costs prepaid, and if addressed to the Party at the address below:

If to Provider:

Choose an item.

Choose an item.

Attention: President

With a copy to:

Catholic Health

992 North Village Avenue

Rockville Centre, New York 11570

Attention: EVP and General Counsel

If to Recipient:

15. Provider is sponsored by the Roman Catholic Church and adheres to the *Ethical and Religious Directives for Catholic Health Care Services* of the United States Conference of Catholic Bishops, as interpreted and applied by the Bishop of Rockville Centre (the "*Directives*"). All actions taken by Provider or that affect Provider in connection with the services furnished by Provider hereunder shall be in accordance with the *Directives*. Provider reserves the right to terminate this Agreement to the extent Provider determines that its participation hereunder is in violation of the *Directives*.
16. Recipient acknowledges that Provider has adopted a Compliance Program and is committed to complying with all applicable laws, rules and regulations. Recipient shall bring to the attention of Provider's Compliance Officer (via the Compliance HelpLine at 866-272-0004) any suspected violation of law that Recipient may discover in association with this Agreement so that the Provider's Compliance Officer may take appropriate action.
17. This Agreement may be executed in one or more counterparts, each of which will be deemed to be an original copy of this Agreement, and all of which, when taken together, shall be deemed to constitute one and the same Agreement. The exchange of copies of this Agreement and of signature pages by electronic transmission (including facsimile copies or portable document format (.pdf) via email delivery) shall constitute effective execution and delivery of this Agreement as to the Parties and may be used in lieu of the original Agreement for all purposes. Signatures of the Parties transmitted electronically shall be deemed to be original signatures for any purpose whatsoever.
18. This Agreement represents the entire agreement between the Parties concerning the subject matter hereof and supersedes all prior agreements and understandings, whether written or oral, relating hereto.
19. This Agreement shall not be assignable, in whole or in part, by either Party without the prior written consent of the other Party, and any such purported assignment without prior written consent shall be null and void.

20. The undersigned Authorized Officials of Provider and Recipient expressly represent and affirm that the contents of any statements made herein are truthful and accurate and that they are duly authorized to sign this Agreement on behalf of their respective institution.

Signatures on Next Page

By an Authorized Official of Provider: Name: Click or tap here to enter text. Title: President Date:	By an Authorized Official of Recipient: Name: Click or tap here to enter text. Title: Click or tap here to enter text. Date:
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Attachment 1

Data Transfer and Use Agreement Project Specific Information

1. Description of Data:

2. Description of Project:

3. Provider Support and Data Transmission:

Provider shall transmit the Data to Recipient: *(select one)* ☐ electronically or ☐ by mail to:

Name: Click or tap here to enter text.

Address: Click or tap here to enter text.

Email: Click or tap here to enter text.

Phone: Click or tap here to enter text.

Upon execution of this Agreement, Provider shall send any specific instructions necessary to complete the transfer of the Data to the contact person listed above, if not already included below in this section of Attachment 1. *(Insert information here)*

4. Reimbursement of Costs (*select one*):

☐ None

☐ As governed by a separate written agreement between the parties

Reimbursement Agreement Reference # (if required): [Click or tap here to enter text.](#)

☐ As set forth herein:

Attachment 2

Data Transfer and Use Agreement

Data-Specific Terms and Conditions: De-identified Data about Human Subjects

Additional Terms and Conditions:

1. The Data will not include personally identifiable information as defined in NIST Special Publication 800-122 (Guide to Protecting the Confidentiality of Personally Identifiable Information). If the Data being provided is coded, the Provider will not release, and the Recipient will not request, the key to the code.
2. If Provider is a Covered Entity, the Data will be de-identified data, as defined by the Health Insurance Portability and Accountability Act of 1996 ("HIPAA").
3. Recipient will not use the Data, either alone or in concert with any other information, to make any effort to identify or contact individuals who are or may be the sources of Data without specific written approval from Provider and appropriate Institutional Review Board (IRB) approval, if required pursuant to 45 CFR 46. Should Recipient inadvertently receive identifiable information or otherwise identify a subject, Recipient shall notify Provider promptly and follow Provider's reasonable written instructions, which may include return or destruction of the identifiable information. In the event that it is not feasible to return or destroy any electronically stored or transmitted identifiable information, the Recipient shall retain such identifiable information as confidential in accordance with applicable law. Notwithstanding the foregoing, Recipient may retain one (1) copy of the Data to the extent necessary to comply with the records retention requirements under any law, and for the purposes of research integrity and verification.
4. By signing this Agreement, Recipient provides assurance that relevant institutional policies and applicable federal, state, or local laws and regulations (if any) have been followed, including the completion of any IRB or ethics review or approval that may be required.
5. Recipient shall promptly report to the Provider any use or disclosure of the Data not provided for by this Agreement of which it becomes aware.
6. Recipient and its employees, agents, subcontractors and any other individual permitted by Recipient to access the data will: (i) use all reasonable security practices, and (ii) take all reasonable security measures necessary to protect the security and privacy of the data.
7. Recipient will be solely responsible for the selection, implementation, and maintenance of its security procedures and policies: (a) for the protection of its internal network and information, and (b) that are sufficient to ensure that (I) the data is used only for authorized purposes, and (II) its systems and data are protected against improper access, use, loss alteration or destruction.
8. Upon expiration of this agreement, the data transferred to Recipient shall be deleted by Recipient per NIST Standard SP-800-88 (Guidelines for Media Sanitization) Appendix A (Minimum Sanitization Recommendations), unless both Parties extend the agreement prior to expiration.
9. Recipient shall not use or further disclose the Data other than as permitted by this Agreement or as otherwise required by law.

Attachment 3

Data Transfer and Use Agreement Identification of Permitted Third-Party Collaborators (*if any*)

For all purposes of this Agreement, the definition of “Third-Party Personnel” checked below will pertain:

☐ “Third-Party Personnel” means: None. No collaborators are permitted on the Project.

-OR-

☐ “Third-Party Personnel” means as set forth below and agreed upon between the Parties:

“Third-Party Personnel” means: faculty, employees, fellows, or students of a third-party institution, which institution (i) has agreed to collaborate in the Project, (ii) has faculty, employees, fellows, or students who have a need to use or provide a service in respect of the Data in connection with its collaboration in the Project, and (iii) has executed an agreement that is substantially similar to this Agreement.